

any operation, effect, or consequence of any instrument executed or made before the same date. The powers and obligations to renew under instruments which came into operation before 31st December, 1882, are accordingly unaffected by this repeal and are still in force.]

7. **23 & 24 Vict. c. 124.** — By another Act, also passed 28th August, 1860, where any estate or interest under any lease or grant from an *ecclesiastical corporation*, is vested in a person as trustee, whether expressly or by implication of law, with a power to raise money for procuring a renewal, or where such power is vested in any person, it is made lawful for such person to raise money for the purpose of purchasing the reversion or otherwise enfranchising the property (*c*); and it has been held that this enactment confers a power not only to raise the money, but also to effect the purchase or enfranchisement (*d*). But this will not authorise the trustees to make any arrangement with the reversioners which will disturb the relative rights of the tenant for life and the remaindermen under the settlement; and where it was proposed to surrender part of the leaseholds in consideration of a release of the reversion of the rest of the leaseholds, and the interests of the tenant for life would suffer by the arrangement, the Court had no power, without the consent of the tenant for life, to give effect to the proposal, though beneficial on the whole (*e*).

II. How fines on renewals to be levied. — We next proceed to inquire in what manner the fines for renewals are to be levied by the trustees.

Upon this subject we shall advert, *First*, to the case where the settlor himself has specifically marked out the fund from which the fines are to be raised, and *Secondly*, to the rules adopted by the Court, where the settlor himself has omitted to declare any intention.

(*c*) 23 & 24 Vict. c. 124, s. 20.

(*d*) *Hayward v. Pile*, 5 L. R. Ch. App. 218, *per* Lord Hatherley.

(*e*) *Hayward v. Pile*, 5 L. R. Ch. App. 214. But in another special case where there was an absolute

trust for renewal, overriding the interest of the tenant for life, the Court made the order, *Hollier v. Burne*, 16 L. R. Eq. 163; [See *Maddy v. Hale*, 3 Ch. D. 327; *Re Lord Ranelagh's* Will. 26 Ch. D. 591.]